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Democrats push for gun control measures - 'We have to act,' president asserts

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WA S H I N G T O N - Democrats said Tuesday that they are pushing toward a vote on expanded gun control measures as the nation reels from its second mass shooting in a week. President Joe Biden said that "we have to act," but the prospects for any major changes are dim, for now, as the party holds narrow majorities in Congress.

Senate Majority Leader Charles Schumer vowed Tuesday morning to take to the Senate floor legislation passed by the House that would require background checks for most gun

sales and transfers. He said the Senate "must confront a devastating truth" after a lack of congressional action on the issue for almost three decades.

"This Senate will be different," Schumer, D-N.Y., said a day after a shooting at a crowded Boulder, Colo., supermarket killed 10 people, including a police officer. "The Senate is going to debate and address the epidemic of gun violence in this country."

While a Senate vote on new gun control measures would be the first in several years, Democrats do not have the support to pass any significant changes. They are not even united themselves, as Sen. Joe Manchin, D-W.Va., told reporters Tuesday that he opposes the House legislation on background checks.

The Senate Judiciary Committee held a hearing Tuesday on proposals for gun control. It is unclear whether any of the bills up for consideration - most of them involving more restrictive background checks - would have made a difference in the Colorado case. A 21-year-old man charged with killing eight people in the Atlanta area last week had purchased a 9mm handgun hours before the shootings, prompting advocates to push for longer waiting periods for purchases.

In brief remarks Tuesday, Biden urged Congress to move quickly to close the loopholes in the background check system and to ban assault weapons and high-capacity magazines - an effort that would be even more difficult to achieve politically. According to a police affidavit, the suspect in the Colorado shooting had purchased an assault-style rifle six days earlier.

"It should not be a partisan issue," Biden said. "This is an American issue. It will save lives, American lives."

At the hearing, Democrats lamented that anguish and anger followed by partisanship and paralysis had become the norm after mass shootings.

"In addition to a moment of silence, I would like to ask for a moment of action," said Sen. Dick Durbin, D-Ill., the chairman of the Judiciary Committee. "A moment of real caring. A moment when we don't allow others to do what we need to do. Prayer leaders have their important place in this, but we are Senate leaders. What are we doing?"

Sen. Richard Blumenthal, D-Conn., who has pushed for expanded gun control since the 2012 shooting at Sandy Hook Elementary School that killed 20 children and six educators in his state, expressed optimism about the chances for new laws with Biden in the White House and Democrats controlling the House and the Senate. He called it "the dawn of a new era."

Sen. Charles Grassley of Iowa, the top Republican on the panel, said in his opening remarks that he was hopeful that Democrats and Republicans could work together to make "bipartisan, common-sense" progress on gun control. But

he said the House-passed legislation did not fit the bill, since the measures passed almost entirely along party lines.

"That is not a good sign that all voices and all perspectives are being considered," Grassley said.

Senate Democrats do not currently have enough support among Republicans to pass new gun control legislation in the 50-50 Senate, as they would need 60 votes to do so. Congress has been unable to find a successful compromise on guns for decades, making it one of the most intractable issues in American politics.

The debate also highlights a larger difficulty for Senate Democrats as they try to move forward on gun legislation and other policy priorities of the Biden White House. With the filibuster in place, forcing a 60-vote threshold for most legislation, House-passed bills on issues such as gun control and voting rights are effectively nonstarters unless Democrats secure significant GOP support.

Some Republicans hinted they would be open to negotiations, though it was unclear if there were any real bipartisan discussions. Senate Minority Leader Mitch McConnell, R-Ky., said he was opposed to the House legislation but that "I'm certainly open to the discussion."

Manchin and Republican Sen. Pat Toomey of Pennsylvania, who have worked together for years to find compromise on background checks, both said they were opposed to the House legislation, which would close loopholes to ensure background checks are extended to private and online sales that often go undetected, including at gun shows, with some limited exemptions for family and other scenarios. A similar version that Manchin and Toomey proposed after the Sandy Hook shootings included a broader set of exemptions than the House bill.

The House passed a second bill to extend a certain review period for background checks from three to 10 days. Rep. Jim Clyburn, D-S.C., introduced the legislation after a shooter killed nine people at a Charleston, S.C., church in 2015.

Toomey said he would like to find legislation that could pass, but "that probably would require something that's a little bit different. So we'll see if we can figure out how to thread that needle."

Manchin did not say whether he would restart negotiations, only that "we're going to try to do the responsible, reasonable thing."

Schumer and Democratic Sen. Chris Murphy of Connecticut, a leading advocate for gun control, said they would meet this week to discuss a path forward. Schumer has not said when he will bring the House legislation up for a vote.

Democrats say they feel that the environment around gun legislation has evolved, especially since their last major push in 2013. They point to troubles at the National Rifle Association, the advocacy group that poured tens of millions of dollars into electing Donald Trump as president in 2016. The organization has been weakened by infighting as well as legal tangles over its finances.

"This is the moment to make our stand. NOW," tweeted Murphy as details of the Colorado shooting emerged Monday evening. "Today, our movement is stronger than the gun lobby. They are weak. We are potent. Finally, a President and a Congress that supports gun reform."

Many in the GOP base are still strongly opposed to gun control of any kind. In Tuesday's hearing, which was scheduled before the Colorado shooting, Republicans showed no signs of wavering.

Sen. Ted Cruz of Texas said that every time there is a shooting, the Senate engages in "ridiculous theater," with Democrats proposing legislation that he said could take guns away from law-abiding citizens. Republicans have argued that background checks would not stop most mass shootings and would prevent some lawful gun owners from purchasing firearms.

"We already know this pattern is predictable, over and over and over again," Cruz said.

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Separately, gun control advocates are making a new attempt to force the gun industry to comply with California's unique law requiring individual identifiers on all bullet casings, a mandate that has been toothless since it was approved in 2007.

The law requires gun manufacturers to adopt microstamping technology on new types of handguns introduced in California.

The intent was to imprint a unique set of microscopic characters on all cartridge casings when weapons are fired, linking bullet casings to the guns that discharged them.

Gun-makers have said the technology is unreliable, and to get around the law, they have not introduced new gun models in the state since the legislation was passed.

New legislation would expand the law to include weapons used by law enforcement authorities, which are currently exempt. The thinking is that forcing police officers into the marketplace would prompt manufacturers to improve technology so they can sell the weapons.

The bill by Democratic Assemblyman Jesse Gabriel, co-founder of the Legislature's Gun Violence Prevention Working Group, would add law enforcement authorities starting in 2023.

"The main priority here is to really overcome the obstinance from gun manufacturers," Gabriel said. "They've resisted at every step of the way."

Mark Oliva, spokesman for the National Shooting Sports Foundation, the trade association for the firearm industry, said microstamping is an " unworkable technology."

It could take up to 10 bullet casings to piece together one complete digital identifier that could determine the weapon that fired the bullets, he said.

"It sounds great on paper, but ... it doesn't hold up. All it does is infringe on the rights of law-abiding citizens and make firearms unavailable to them," Oliva said.

Moreover, he said, the technology could be easily defeated by sanding the microstamp off the firing pin in much the same way that criminals currently erase guns' serial numbers.

As a result, Oliva said, "I don't see how this would help to solve crime or resolve criminal misuse of firearms."

The microstamps also would eventually wear off the firing pins, Oliva said, because law enforcement officers may fire thousands of rounds with their service weapons in training alone.

Last year, California enacted a law easing the requirement for two microstamps on each shell casing to one, with proponents citing legal filings in which the industry said it could meet that standard. Another bill this year would keep the two-stamp requirement in place until July 2022.

Information for this article was contributed by Mary Clare Jalonick, Lisa Mascaro, Hannah Fingerhut, Michael Balsamo and Don Thompson of The Associated Press; and by Catie Edmondson of The New York Times.

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